BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
INSTRUCTION 36-2658

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Personnel

LEGISLATIVE FELLOWS PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Department of the Air Force Policy Directive (DAFPD) 36-26, *Total Force Development and Management.* It provides instruction for establishing the Department of the Air Force (DAF) Legislative Fellows Program. Subordinate units are required to send implementing or supplementing publications to the higher headquarters office of primary responsibility (OPR) for review and coordination before publishing. This instruction has been developed in collaboration between the Deputy Chief of Staff for Manpower, Personnel, and Services (AF/A1), the Deputy Chief of Space Operations for Human Capital (SF/S1), the Chief of the Air Force Reserve (AF/RE) and the Director of the Air National Guard (NGB/CF), and applies to civilian employees and uniformed members of the DAF, Air Force Reserve (AFR), and Air National Guard (ANG). This instruction requires the collection and/or maintenance of information protected by the Privacy Act of 1974 authorized by Title 10 United States Code, Section 9013, *Secretary of the Air Force*. The applicable SORNs: F036 AFPC C, *Military Personnel Records System*, F033 Air Force Base, *Privacy Act Request File*, F036 AFPC Q, *Personnel Data System*, F036 AFMC D, *Education and Training Management System*, F036 AF A1 A, *Air Force Automated Education Management System*, F036 AETC L, *Community College of the Air Force Student Transcript, Administration, and Records System*, and FO50 AF MP A are available at: **https://dpcld.defense.gov/Privacy/SORNs/**. Refer recommended changes and questions about this publication to the OPR listed above using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. The authorities to waive wing, delta or unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures,* Table A10.1, for a description of the authorities associated with the Tier numbers. Submit requests

for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestor's commander for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been revised to account for the establishment of the United States Space Force, and includes guidance pertaining to Guardians and their ability to participate in the DAF Legislative Fellows. Aside from the inclusion of Guardians, there are no significant changes to the policy.

Chapter 1

PROGRAM OVERVIEW

1.1. Overview. The DAF Legislative Fellows program provides qualified officers, enlisted, and civilians possessing proven leadership potential with in-depth exposure to the processes, procedures, and culture of the United States Congress. This 3-phase program allows participants to develop an enhanced perspective of the legislative process on a wide range of issues, while at the same time providing Congress, DAF and defense expertise at the staff level. Award of the Legislative Special Experience Identifier is contingent on the successful completion of all three phases, and approval of the Director, Air Force Legislative Liaison (SAF/LL).

1.1.1. Phase 1: Developmental Rotation. The first phase is a 6-month developmental rotation, where the Fellow will be assigned to a Headquarters office (Secretariat of the Air Force, Air Force, or Space Force) or agency, or to another relevant governmental agency within the National Capital Region, to gain a beneficial breadth of experience. Air War College Directorate of Air Force Fellows (AWC/DAFF) will determine the assignments in coordination with SAF/LL. Approval of matched assignments will be granted by the Director of SAF/LL and Commandant, Air War College (AWC/CC).

1.1.2. Phase 2: Legislative Fellowship. The second phase is a 12-month immersion on Capitol Hill, where participants work on the personal staff of a member of Congress.

1.1.2.1. Specific assignments are determined through coordination between SAF/LL, Secretary of the Air Force (SecAF), Budget and Appropriations Liaison (SAF/FML), AFR, Air Reserve Personnel Inquiries (AF/REI), and National Guard Bureau, Legislative Liaison (NGB/LL). The Congressional Correspondence Division (SAF/LLC) is the office of primary responsibility for this phase of the program.

1.1.2.2. Fellows are typically assigned to offices with defense, intelligence or foreign relations interests, and assignments are based on the best interest of the DAF.

1.1.2.3. The House Liaison Office (SAF/LLH) and Senate Liaison Office (SAF/LLS) Division Chiefs serve as the Fellows' military mentor during this phase.

1.1.3. Phase 3: Utilization Tour. The last phase is a 24-month utilization tour in an assignment directly related to the legislative arena, as defined by SAF/LL. Per Department of Defense Instruction (DoDI) 1322.06, *Legislative Fellowships, Internships, Scholarships, Training-With-Industry (TWI), and Grants Provided to DoD or DoD Personnel for Education and Training,* educate Department of Defense (DoD) personnel on the workings of the legislative branch of government.

1.2. Background. The Chief of Staff of the Air Force approved the DAF Legislative Fellows program in April 1995 as a Professional Military Education (PME) program for intermediate service school credit for officer military members, adding civil servants to the program in 2000. The DAF Legislative Fellows program falls under, and is a component, of the overall DAF Fellows program. One DAF Legislative Fellows group per year has participated in the program since 1996. In 2009, Department of Defense Instruction (DoDI) 1322.06, *Fellowships, Legislative Fellowships, Internships, Scholarships, Training-With-Industry (TWI), and Grants Provided to DoD or DoD Personnel for Education and Training* was modified to allow for enlisted member

participation in the DAF Legislative Fellows program. As a post-Senior Noncommissioned Officer Academy program, Enlisted Fellows are not subject to Air University academic requirements.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Roles and Responsibilities.

2.1.1. Deputy Chief of Staff, Manpower, Personnel & Services (AF/A1) and Deputy Chief of Space Operations for Human Capital (SF/S1).

2.1.1.1. Provide strategic objectives and advocacy for DAF PME programs, which includes the DAF Legislative Fellows Program.

2.1.1.2. Act as approval authority for officer, enlisted, and civilian Airmen and Guardians identified to participate in the DAF Legislative Fellows program.

2.1.1.3. Act as approval authority for removals for cause and removals based on mission-essential determinations.

2.1.1.4. Act as approval authority for determinations made to require reimbursement of training costs for Airmen and Guardians who do not complete training.

2.1.2. Director, DAF Legislative Liaison (SAF/LL).

2.1.2.1. Provide Air and Space Staff advocacy for the DAF Legislative Fellows program. Assist AWC/DAFF, Directorate, Air Force, Force Development (AF/A1D), Space Force, Force Development (SF/S1D), Air Force Personnel Center (AFPC), Air Force Personnel Center Directorate of Civilian Personnel Operations Branch (AFPC/DPCZ), Space Force Enterprise Talent Management Office (SF/ETMO), and Space Training and Readiness Command/Delta 13 (STARCOM/DEL13) in determining DAF Legislative Fellows program requirements for AFPC, SF/ETMO Central Schools and Civilian Competitive Development Program (CCDP) Selection Boards.

2.1.2.2. Assist AWC/DAFF with any change in DAF Legislative Fellows program academic institutions.

2.1.2.3. Coordinate with AF/A1D and SF/S1D to ensure all individuals identified as DAF Legislative Fellows meet eligibility requirements and are able to fulfill program objectives, to include Phase 3 utilization tours, before final approval by AF/A1 and SF/S1.

2.1.2.4. Assist AWC/DAFF in conducting the annual orientation program for DAF Legislative Fellows.

2.1.2.5. Coordinate with the Air Force Learning Division, SF/S1D, and AWC/DAFF to ensure adequate program funding to support DAF Legislative Fellows activities.

2.1.2.6. Assists AWC/DAFF to determine and approve Phase 1 developmental rotation assignments in accordance with **paragraph 1.1.1**.

2.1.2.7. Coordinate with AFPC and SF/ETMO on Phase 3 utilization tour assignments.

2.1.2.8. Submit applications to the DAF Legislative Fellows program academic institution with Fellows' resumes for formal acceptance annually.

2.1.2.9. Coordinate with SAF/LL on assignment of DAF Legislative Fellows to congressional offices.

2.1.2.10. Provide sponsors for Fellows' Permanent Change of Station to the National Capital Region.

2.1.2.11. In conjunction with AWC/DAFF, ensure compliance with DoDI 1322.06 in the post- assignment process. Ensures, per DoDI 1322.06, that DAF ethics counselors provide briefings on the standards of conduct to the DAF Legislative Fellows.

2.1.2.12. Act on leave requests submitted by civilian and enlisted DAF Legislative Fellows program participants.

2.1.2.13. Prepare and sign the AF Form 475, *Education/Training Report*, upon completion of the Phase 2 Legislative Fellowship.

2.1.2.14. Provide oversight and management of Enlisted Legislative Fellowship program, in conjunction with the AF/A1D and SF/S1D.

2.1.2.14.1. Manage the selection and hiring process of active duty Enlisted Legislative Fellows, in conjunction with Offices of the Chief Master Sergeant of the Air Force and Chief Master Sergeant of the Space Force inputs.

2.1.2.14.2. Determine the yearly number of active duty Enlisted Legislative Fellows, in conjunction with Offices of the Chief Master Sergeant of the Air Force and Chief Master Sergeant of the Space Force inputs.

2.1.2.14.3. Determine placement of active duty Enlisted Legislative Fellows during utilization tour, in conjunction with Office of the Chief Master Sergeant of the Air Force, Air Force Chief Master Sergeant Management Office (AF/DPE), Chief Master Sergeant of the Space Force, AFPC, and SF/ETMO input.

2.1.2.14.4. Coordinate with Office of the Chief Master Sergeant of the Air Force, AF/DPE, Chief Master Sergeant of the Space Force, AFPC, and SF/ETMO on the post-Fellowship placement of active duty Enlisted Legislative Fellows.

2.1.3. Air University Commander (AU/CC) and Space Training and Readiness Command/Delta 13 Commander (STARCOM DEL13/CC).

2.1.3.1. Serve as Senior Rater for DAF Legislative Fellows participants.

2.1.3.2. Exercise Uniform Code of Military Justice authority over DAF Legislative Fellow participants.

2.1.4. Air University (AETC/AU).

2.1.4.1. AWC/DAFF serves as the office of primary responsibility within AETC/AU.

2.1.4.2. Establish a PME course of study and curriculum requirements.

2.1.4.3. Provide initial program information to Fellows to include SAF/LL point of contact, DAF Legislative Fellows Intermediate Developmental Education course of study and curriculum requirements, requirements for Phase 1-Joint PME credit, academic institution information, and Temporary Duty (TDY) funding limitations and parameters.

2.1.4.4. In conjunction with SAF/LL, conduct an annual DAF Legislative Fellows orientation program in Washington, DC, at the beginning of Phase 1.

2.1.4.5. Publish TDY orders for civilian and Regular DAF Legislative Fellows participants.

2.1.4.6. Guide SAF/LL in completion of the AF Form 475.

2.1.4.7. Pay DAF Legislative Fellows program academic institution and associated fees for Regular DAF military members, and track all direct and indirect training costs per DoDI 1322.06.

2.1.4.8. Pay TDY expenses for one annual congressional district and/or state visit for Regular DAF military members.

2.1.4.9. Act on leave requests submitted by Regular DAF officers.

2.1.4.10. In conjunction with SAF/LL, act as a focal point for the Commanders Involvement Program. Ensure compliance with DoDI 1322.06 in the post assignment process.

2.1.4.11. Update DAF Legislative Fellows participant records to reflect successful completion of DAF Legislative Fellows requirements and in-residence Intermediate Developmental Education credit where appropriate.

2.1.5. Directorate, Air Force Force Development (AF/A1D) and Space Force Force Development (SF/S1D).

2.1.5.1. Provide Active Duty PME student man-year requirements to support the DAF Legislative Fellows program.

2.1.5.2. Serve as Air and Space Staff Program Element Monitor in support of Program Objective Memorandum funding requirements for the DAF Legislative Fellows program, as an element of the PME program.

2.1.5.3. In conjunction with SAF/LL and AWC/DAFF, determine requirements for the Air Force Personnel Center, SF/ETMO Central Schools and CCDP Selection Boards to use in identifying DAF Legislative Fellows to include the number of Fellows, Air Force/Space Force Specialty Codes, education, experience, requirements, and reporting date.

2.1.5.4. Provide reports to Undersecretary of Defense, Personnel and Readiness (USD(P&R)) as required by DoDI 1322.06, in coordination with AWC/DAFF and SAF/LL.

2.1.5.5. Develop policy for the DAF Legislative Fellows, in coordination with AWC/DAFF and SAF/LL.

2.1.5.6. Provide SAF/LL the list of the individuals identified as DAF Legislative Fellows before final approval by AF/A1 and SF/S1 to ensure all program participants meet eligibility requirements and are able to fulfill program objectives.

2.1.6. AFPC, SF/ETMO, Air Force Personnel Center Directorate of Civilian Personnel Operations Branch (AFPC/DPCZ), and STARCOM/DEL13.

2.1.6.1. Conduct the Civilian Competitive Development Program Selection Board to identify civilian DAF Legislative Fellows program candidates, in conjunction with SAF/LL input.

2.1.6.2. Provide funding for Civilian Competitive Development Program DAF Legislative Fellows program participants.

2.1.6.3. Provide SAF/LL and AWC/DAFF the names of civilian DAF Legislative Fellows program participants.

2.1.6.4. Ensure each Civilian Competitive Development Program DAF Legislative Fellows participant has signed a Continued Service Agreement for a commitment period of 3 years per Department of the Air Force Instruction (DAFI) 36-2687, *Civilian Development*, prior to expenditures of any funds. Employees who fail to complete training due to circumstances within their control will reimburse the DAF for all training costs or on a pro-rata basis (excluding salary).

2.1.6.5. Pay Regular DAF and civilian TDY expenses to the mode level funded annually for Intermediate Developmental Education DAF Fellows.

2.1.7. Air Force Reserve Command (AFRC).

2.1.7.1. Conducts a selective board to identify AFRC DAF Legislative Fellows program candidates.

2.1.7.2. Provides funding for AFRC DAF Legislative Fellows program participants.

2.1.7.3. Provides SAF/LL and AWC/DAFF the names of AFRC DAF Legislative Fellows program participants before final approval by AF/A1 to ensure all program participants meet eligibility requirements and are able to fulfill program objectives.

2.1.7.4. Ensures compliance with DoDI 1322.06 in the post assignment process.

2.1.7.5. Ensures AFRC DAF Legislative Fellows program participants incur a 3-year Active Status obligation upon completion of the DAF Legislative Fellows program.

2.1.7.6. Publishes TDY orders for AFR Legislative Fellows participants. **Note:** AFR Fellows pay TDY expenses to the mode-level funded annually for Intermediate Developmental Education DAF Fellows.

2.1.7.7. Acts on leave requests submitted by AFRC DAF Legislative Fellows program participants.

2.1.7.8. Determines utilization tour and post-Fellowship placement of AFRC Enlisted Legislative Fellows, in conjunction with input by the Command Chief Master Sergeant of AFRC.

2.1.8. Director, Air National Guard (NGB/CF).

2.1.8.1. Determines utilization tour and post-fellowship placement of ANG DAF Legislative Fellows.

2.1.8.2. Provides strategic objectives and establishes selection criteria for ANG personnel to be considered for the DAF Legislative Fellowship.

2.1.8.3. Provides school day funding for ANG DAF Legislative Fellows program participants.

2.1.8.4. Ensures compliance with the DoDI 1322.06 in the post-assignment process.

2.1.9. National Guard Bureau Human Resources Directorate (NGB/HR):

2.1.9.1. Announces the program and eligibility annually or as required. Convenes selection panel to make recommendations to the NGB/CF for approval of participation.

2.1.9.2. Provide SAF/LL and AWC/DAFF the names of ANG DAF Legislative Fellows program selectees to ensure all participants meet eligibility requirements and are able to fulfill the program objectives.

2.1.9.3. Ensure the ANG DAF Legislative Fellows program participants incur a 3-year obligation upon completion of the DAF Legislative Fellows program.

2.1.9.4. Provide respective units with a training line number to publish orders for ANG DAF Legislative Fellows program participants.

2.1.9.5. Publish TDY orders for ANG DAF Legislative Fellows program participants. **Note:** ANG Fellows pay TDY expenses to the mode-level funded annually for Intermediate Developmental Education DAF Fellows.

2.1.9.6. Act on leave requests submitted by ANG DAF Legislative Fellows program participants.

2.1.9.7. Determine utilization tour and post-Fellowship placement of ANG Enlisted Legislative Fellows, in conjunction with ANG Command Chief Master Sergeant input.

Chapter 3

WAIVERS AND UNDERSTANDING

3.1. Waivers. Deferments or waivers for any of the three phases, and particularly for the utilization tour, will be coordinated through SAF/LL, and will be based on the needs of the DAF. The SecAF is the approval authority for permanent utilization tour waivers, and SAF/LL is the approval authority for utilization tour deferments. The ANG and AFR will determine deferments and waivers for their assigned personnel, in coordination with SAF/LL.

3.2. Understanding. There are numerous restrictions on DAF military and civilian personnel regarding partisan political activities. Eligible candidates must agree to comply with relevant federal law and DoD policy, to include Title 5 United States Code Sections 7321-7326, *The Hatch Act*; implementing regulations Title 5, Code of Federal Regulations, Part 734, *Political Activities of Federal Employees*; Department of Defense Directive 1344.10, *Political Activities by Members of the Armed Forces*; and DoDI 1322.06. **(T-0)** Fellows must also be familiar with congressional ethics, rules, and guidelines. **(T-0)**

ALEX WAGNER
Assistant Secretary
(Manpower and Reserve Affairs)

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 USC § 7321-7326, *Political Activities* (The Hatch Act)

5 USC § 552a, *Records maintained on individuals* (Privacy Act of 1974)

10 USC § 9013, *Secretary of the Air Force*

5 CFR Part 734, *Political Activities of Federal Employees*

DoDD 1344.10, *Political Activities by Members of the Armed Forces*, 19 February 2008

DoDI 1322.06, *Fellowships, Legislative Fellowships, Internships, Scholarships, Training-With-Industry (TWI), and Grants Provided to DoD or DoD Personnel for Education and Training*, 12 October 2016

DAFPD 36-26, *Total Force Development and Management*, 15 April 2022

DAFI 36-2687, *Civilian Development*, 09 November 2023

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

DAFMAN 90-161, *Publishing Processes and Procedures*, 18 October 2023

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

AF Form 475, *Education/Training Report*

Abbreviations and Acronyms

AETC—Air Education and Training Command

AFPC—Air Force Personnel Center

AFR—Air Force Reserve

AFRC—Air Force Reserve Command

ANG—Air National Guard

AU—Air University

CCDP—Civilian Competitive Development Program

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DEL—Delta

DoD—Department of Defense

DoDI—Department of Defense Instruction

ETMO—Enterprise Talent Management Office

NGB—National Guard Bureau

OPR—office of primary responsibility

PME—Professional Military Education

SecAF—Secretary of the Air Force

STARCOM—Space Training and Readiness Command

TDY—Temporary Duty

Office Symbols

AF/A1—The Deputy Chief of Staff, Manpower, Personnel and Services

AF/A1D—Air Force Directorate of Force Development

AF/DPE—Air Force Chief Master Sergeant Management Office

AF/RE—Chief of Air Force Reserve

AF/REI—Air Reserve Personnel Inquiries

AFPC/DPCZ—Air Force Personnel Center Directorate of Civilian Personnel Operations Branch

AU/CC—Commandant, Air University

AWC/CC—Commandant, Air War College

AWC/DAFF—Air War College Directorate of Air Force Fellows

DEL13/CC—Commander, Delta 13

NGB/CF—Director, Air National Guard

NGB/HR—National Guard Bureau Human Resources Directorate

NGB/LL—National Guard Bureau Legislative Liaison

SAF/FML—Secretary of the Air Force, Budget and Appropriations Liaison

SAF/LL—Director of Legislative Liaison

SAF/LLC—Secretary of the Air Force, Congressional Correspondence Division

SAF/LLH—House Liaison Office

SAF/LLS—Senate Liaison Office

SF/ETMO—Space Force Enterprise Talent Management Office

SF/S1—Deputy Chief of Space Operations for Human Capital

SF/S1D—Space Force Directorate of Force Development

USD(P&R)—Undersecretary of Defense, Personnel and Readiness